BRENDAN NGEHSI NEWANFORBI
1455 Cat Tail Drive
Stockton, CA 95204
Plaintiff, Pro Se

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. STATE OF CALIFORNIA, et al., Defendants.	))))))	Case No.: 2:25-cv-01460-DC-CSK PS **PLAINTIFF'S OBJECTIONS TO MAGISTRATE JUDGE'S FINDINGS AND RECOMMENDATIONS** (ECF No. 23)

Plaintiff Brendan Ngehsi Newanforbi, proceeding pro se, respectfully submits these Objections to the Magistrate Judge's Findings and Recommendations ("F&R") issued April 20, 2026 (ECF No. 23). Plaintiff consents to dismissal of the claims he previously withdrew (State of California, Monell claims against CHP, and official-capacity claims). Plaintiff objects, however, to the dismissal without leave to amend of his individual-capacity Fourth and Fourteenth Amendment claims against Officers Santiago Meza-Gonzalez and Jose Melano.

These Objections are timely under 28 U.S.C. § 636(b)(1) and Local Rule 302(c)(1). Plaintiff requests de novo review and denial of the motion to dismiss (ECF No. 12) or, alternatively, leave to amend.

I. SPECIFIC OBJECTIONS

Objection No. 1: The F&R errs by weighing disputed facts and crediting the CHP report over Plaintiff's well-pleaded allegations (F&R at 5–6).

The F&R concludes that probable cause existed based on the late hour, shoulder location, and cup remark, while dismissing Plaintiff's express allegations that (1) the officers had no probable cause, (2) the cup contained no alcohol, (3) the search found no evidence of intoxication or illegal activity, and (4) Plaintiff showed no signs of impairment. (Compl. ¶¶ 12–17.) It does so by crediting the CHP report's contrary details (odor of alcohol, red/watery eyes, slurred speech, poor field sobriety tests).

This is reversible error. At the Rule 12(b)(6) stage the Court must accept all well-pleaded factual allegations as true and draw all reasonable inferences in Plaintiff's favor. Ashcroft v. Iqbal, 556 U.S. 678, 678 (2009); Bell Atl. Corp. v. Twombly, 550 U.S. 544, 570 (2007). Pro se complaints receive especially liberal construction. Chambers v. Herrera, 78 F.4th 1100, 1104 (9th Cir. 2023). The Court may not weigh the CHP report's version against Plaintiff's version.

Two additional facts alleged in the Complaint make probable cause implausible on its face: (a) the District Attorney declined to file any charges, and (b) CHP itself issued a certificate under Penal Code § 851.6 characterizing the encounter as a mere detention (not an arrest) because no accusatory pleading was filed. (Compl. ¶ 18.) These facts must be taken as true. The F&R's probable-cause ruling should be rejected.

Objection No. 2: The F&R errs in holding that the Fourteenth Amendment due-process claim fails to state a claim (F&R at 7).

The Complaint alleges that Defendants arbitrarily escalated a welfare check into a full custodial seizure (handcuffs, transport, chemical testing) without probable cause. (Compl. ¶¶ 17–19, 22–23.) These facts state a plausible claim of arbitrary deprivation of liberty. The F&R

offers no analysis explaining why they are insufficient. The claim should not be dismissed.

Objection No. 3: The F&R errs in granting qualified immunity on the pleadings (F&R at 7).

Qualified immunity is an affirmative defense that is rarely resolved at the 12(b)(6) stage when the complaint alleges a clear constitutional violation. Pearson v. Callahan, 555 U.S. 223, 236 (2009). Plaintiff's allegations — a welfare check escalated, on nothing more than a cup speculation, into a warrantless vehicle search and custodial arrest with no evidence found — state a Fourth Amendment violation. The right at issue has been clearly established for decades: officers may not prolong a stop or conduct a warrantless search/arrest without probable cause. Rodriguez v. United States, 575 U.S. 348 (2015) (prolonged stops); Dunaway v. New York, 442 U.S. 200 (1979); Arizona v. Gant, 556 U.S. 332 (2009). On the facts alleged in the Complaint, any reasonable officer would have known the conduct was unlawful. The F&R's qualified-immunity ruling is premature.

Objection No. 4: The F&R errs in recommending dismissal without leave to amend (F&R at 7–8).

Leave to amend must be granted liberally to pro se plaintiffs unless it is clear that no amendment can cure the defects. Garity v. APWU Nat'l Lab. Org., 828 F.3d 848, 854 (9th Cir. 2016). Plaintiff has already narrowed the claims in good faith, and the DA's decision and Penal Code § 851.6 certificate provide concrete factual support for a refined Fourth Amendment theory. Amendment is not futile. Dismissal with prejudice at the pleading stage is an abuse of discretion.

II. CONCLUSION AND REQUEST FOR RELIEF

Plaintiff respectfully requests that the District Judge:

1. Decline to adopt the portions of the F&R recommending dismissal of the Fourth and

Fourteenth Amendment claims against Officers Meza-Gonzalez and Melano in their individual capacities;

2. Deny Defendants' motion to dismiss (ECF No. 12) as to those claims; or, in the alternative,

3. Grant Plaintiff leave to amend the Complaint; and

4. Grant any other relief the Court deems just and proper.

Dated: April 21, 2026

Respectfully submitted,

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BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

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CERTIFICATE OF SERVICE

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I, Brendan Ngehsi Newanforbi, hereby certify that on April 21, 2026, I electronically served a true and correct copy of the foregoing PLAINTIFF'S OBJECTIONS TO MAGISTRATE JUDGE'S FINDINGS AND RECOMMENDATIONS (ECF No. 23) on Defendants' counsel by email at the addresses shown below:

Haiyang A. Li
Deputy Attorney General
Office of the Attorney General / Department of Justice
300 South Spring Street, Suite 1702
Los Angeles, CA 90013
Haiyang.Li@doj.ca.gov

Adriana Zagal
Legal Secretary
Adriana.Zagal@doj.ca.gov

Dated: April 21, 2026

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BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
(209) 801-4442
BNN.CDL@GMAIL.COM